IN THE DISTRICT COURT OF APPEAL OF FLORIDA
THIRD DISTRICT

Case No. 3D26-_____
L.T. Case No. 2025-025388-CA-01

ALEXIS ESPINOSA and SOLANO DELIVERY SERVICE LLC
Petitioners,

v.

BELKIS BOLANO GONZALEZ,
Respondent.

PETITIONERS' PETITION FOR WRIT OF PROHIBITION

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Petitioners, Alexis Espinosa and Solano Delivery Service LLC ("Petitioners"), pursuant to article V, section 4(b)(3) of the Florida Constitution and Florida Rule of Appellate Procedure 9.100, respectfully petition this Court for a writ of prohibition prohibiting the Honorable William Thomas, Circuit Judge of the Eleventh Judicial Circuit, in and for Miami-Dade County, Florida, from taking any further discretionary action in the underlying proceeding, Belkis Bolano Gonzalez v. Alexis Espinosa and Solano Delivery Service LLC, Case No. 2025-025388-CA-01. Consistent with Florida Rule of Appellate Procedure 9.100(e), Judge Thomas is omitted from the caption, is identified in the body of this Petition as a formal party, and will be served with the Petition.

BASIS FOR INVOKING THE JURISDICTION OF THE COURT

This Court has original jurisdiction to issue writs of prohibition pursuant to article V, section 4(b)(3) of the Florida Constitution and Florida Rules of Appellate Procedure 9.030(b)(3) and 9.100. This Petition seeks review of the September 9, 2026 order denying Petitioners' Verified Motion for Disqualification of the presiding circuit judge. A.74.

Prohibition is the proper vehicle for immediate review of the denial of a motion to disqualify a trial judge. Sutton v. State, 975 So. 2d 1073, 1076 (Fla. 2008) ("[I]t should be noted that the petitioners properly utilized petitions for writs of prohibition to seek review in the circuit court of the denials of the motions to disqualify the trial judge."). Petitioners filed this Petition promptly after rendition of the order denying disqualification. The Petition therefore invokes this Court's original prohibition jurisdiction to determine whether the

Verified Motion for Disqualification was legally sufficient and, if so, to prevent further discretionary action by the disqualified judge.

NATURE OF THE RELIEF SOUGHT

Petitioners seek a writ of prohibition preventing Judge Thomas from taking further discretionary action in the underlying proceedings and requiring reassignment of the case to a different circuit judge. Petitioners' Verified Motion for Disqualification alleged a continuing and documented adversarial history between Judge Thomas and Petitioners' counsel, including a prior proceeding in which this Court held that allegations concerning Judge Thomas's treatment of the same counsel were legally sufficient to require disqualification, followed by additional disqualification disputes in later matters involving the same counsel. Accepted as true and viewed from Petitioners' perspective, those allegations would cause a reasonably prudent litigant to fear that they would not receive a fair and impartial hearing and trial going forward. Florida Rule of General Practice and Judicial Administration 2.330(h) therefore required disqualification.

FACTS UPON WHICH PETITIONERS RELY

I. The Prior Halsall Case Resulted in This Court Requiring Judge Thomas's Disqualification.

The present Verified Motion for Disqualification ("Verified Motion") did not arise from an isolated interaction in this case. Petitioners alleged a history between Judge Thomas and their counsel that had already resulted in appellate intervention by this Court. A.6–8.

In Rohan Halsall v. Alfredo Rodriguez & Miami Fine Foods, LLC, Case No. 2020-017285-CA-01 (hereinafter "Halsall"), Petitioners' counsel filed a verified motion to disqualify Judge Thomas after a calendar call at which, according to the sworn allegations, the trial court displayed a combative and hostile manner toward the defense and counsel, imposed burdens inconsistent with its own trial order, and required the defense to produce an active clinical neurosurgeon for deposition within six business days or risk having the expert stricken. A.10–12. The motion further alleged that the trial court argued with counsel, used belittling and condescending dialogue and tone, and took up legal matters not raised by the plaintiff. A.12. Judge Thomas denied that motion as legally insufficient. A.20.

The defendants then sought prohibition relief in this Court. Treating the sworn factual allegations as true, this Court concluded that disqualification was warranted, granted the petition, and remanded for reassignment to a successor judge. Rodriguez v. Halsall, 352 So. 3d 1286, 1287 (Fla. 3d DCA 2023).

II. The Adversarial Relationship Between the Trial Judge and Petitioners' Counsel Continued in Later Cases.

Petitioners further alleged that the history did not end with the Halsall case. In Adonida Beqiri, as Personal Representative of the Estate of Lirjana Beqiri v. Ekaterina Goncharova and Sergey Goncharov, Case No. 2024-000974-CA-01 (hereinafter "Beqiri"), the same defense counsel moved to disqualify Judge Thomas in April 2024 based on the prior history and disqualification in the Halsall case. A.13–15. That motion was denied. A.26.

A second verified motion was filed after the Beqiri case later proceeded to a jury trial beginning September 29, 2025. A.28–33. According to that motion, before any evidence was presented, the trial court requested an overview of the case and, after hearing the parties' descriptions of the case, argued with and cross-examined defense counsel from the bench, challenged the defense's liability and comparative fault theories, expressed disagreement with defense counsel's position, and stated that the defense's account of the accident did not make sense to the court. A.30. The motion further alleged that the court addressed defense counsel in an aggressive and increasingly agitated manner, and described Judge Thomas as erratic in his conduct and demeanor, partial, intensely condescending, and combative towards defense counsel. A.29–30.

The motion also alleged that, during defense counsel's opening statement and without an objection from the plaintiff, Judge Thomas interrupted and argued with counsel in front of the jury, directing counsel to "stick to the facts" while counsel was discussing the respective roles of the court and jury. A.31. The jury was then removed from the courtroom, and Judge Thomas scolded defense counsel about what an opening statement should be, after which the defense renewed its motions for disqualification and mistrial, noting that the court had been condescending to defense counsel in the jury's presence. A.31, A.58.

The motion additionally alleged materially different treatment of defense counsel and plaintiff's counsel during voir dire and opening statements, including that Judge Thomas failed to make eye contact with

defense counsel while not displaying the same allegedly hostile or evasive demeanor toward plaintiff's counsel. A.32.

Those events resulted in an ore tenus motion for disqualification during trial, followed by the second verified motion for disqualification, both of which were denied. A.60–62.

Petitioners' Verified Motion identifies another instance where disqualification issues occurred, in Duverton Smith v. Adrian Santo Rivera and Allure Hospitality Supplier Inc., Case No. 2025-018931-CA-01 (hereinafter "Smith"). There, the same defense counsel filed another motion to disqualify Judge Thomas on December 11, 2025, based upon counsel's prior history with Judge Thomas. A.7. On February 19, 2026, Judge Thomas entered an order granting disqualification because the motion had not been ruled upon within the time prescribed by the applicable rule, although the order stated that the court considered the motion legally insufficient. A.72.

III. Petitioners Filed the Present Verified Motion Based on That Continuing History of an Adversarial Relationship Between the Trial Judge and Petitioners' Counsel.

On September 8, 2026, Petitioners filed their Verified Motion for Disqualification. A.6–9. The motion alleged that the history between Judge Thomas and Petitioners' counsel, including this Court's prior intervention in Halsall, the subsequent events alleged in Beqiri, and the later disqualification proceeding in Smith, caused Petitioners to fear that they would not receive fair and impartial treatment with Judge Thomas presiding because the adversarial relationship alleged between the court and Petitioners' counsel had continued rather than dissipated. A.6–9.

On September 9, 2026, the trial court denied the Verified Motion. A.74. This Petition followed.

ARGUMENT

I. Standard of Review and Governing Legal Standard.

"[P]rohibition is … clearly recognized as the proper avenue for immediate review of whether a motion to disqualify a trial judge has been correctly denied." Sutton, 975 So. 2d at 1076; see also Tundidor v. State, 361 So. 3d 775, 777 (Fla. 2023) ("Once a basis for disqualification has been established, prohibition is both an appropriate and necessary remedy.") (quoting Bundy v. Rudd, 366 So. 2d 440, 442 (Fla. 1978)).

Florida Rule of General Practice and Judicial Administration 2.330(h) strictly limits the trial judge's role when considering an initial motion to disqualify. It provides that "[t]he judge against whom an initial motion to disqualify … is directed may determine only the legal sufficiency of the motion and shall not pass on the truth of the facts alleged." Id. "If the motion is legally sufficient, the judge must immediately enter an order granting disqualification and proceed no further in the action." Id.

The inquiry therefore "focuses on those matters from which a litigant may reasonably question a judge's impartiality rather than the judge's perception of his ability to act fairly and impartially." Stevens v. Americana Healthcare Corp. of Naples, 919 So. 2d 713, 715 (Fla. 2d DCA 2006) (quoting Livingston v. State, 441 So. 2d 1083, 1086 (Fla. 1983)). "The test … is 'whether the facts alleged would place a reasonably prudent person in fear of not receiving a fair and impartial trial.'" Chamberlain v. State, 881 So.

2d 1087, 1097 (Fla. 2004) (quoting Livingston v. State, 441 So. 2d 1083, 1086 (Fla. 1983)).

"In reviewing the allegations in a motion for disqualification, facts must be taken as true and must be viewed from the movant's perspective." Fla. Power & Light Co. v. Velez, 365 So. 3d 1194, 1198 (Fla. 3d DCA 2023) (quoting In re Guardianship of O.A.M., 124 So. 3d 1031, 1032 (Fla. 3d DCA 2013)). The "focus is 'not what the judge intended, but rather how the message is received and the basis of the feeling.'" Id. (quoting Cisneros v. Guinand, 314 So. 3d 682, 683 (Fla. 3d DCA 2021)). "So long as the allegations are not frivolous or fanciful, they are sufficient to support a motion to disqualify." Barber v. Mackenzie, 562 So. 2d 755, 757 (Fla. 3d DCA 1990) (internal quotations and citation omitted).

"Whether the motion [to disqualify] is legally sufficient is a question of law." Parker v. State, 3 So. 3d 974, 982 (Fla. 2009). Therefore, "[t]his Court's review of a trial judge's determination of a motion to disqualify is de novo." Mendoza v. State, 87 So. 3d 644, 662 (Fla. 2011) (quoting Chamberlain, 881 So. 2d at 1097).

II. The Verified Motion Was Legally Sufficient Because It Alleged a Recent and Continuing Adversarial History Between the Trial Judge and Petitioners' Counsel.

Although an attorney and client are separate entities, Florida courts recognize that an adversarial relationship between a judge and a party's attorney may give the client a well-founded fear that it will not receive fair and impartial treatment. JJN FLB, LLC v. CFLB Partnership, LLC, 283 So. 3d 922, 927 (Fla. 3d DCA 2019) ("Though a client and his counsel are separate

entities … it is understandable that a client would become concerned and fearful upon learning that the trial judge has an antipathy towards its lawyer ….") (cleaned up; quotations and citation omitted); see also Edwards-Freeman v. State, 138 So. 3d 507, 509 (Fla. 4th DCA 2014) ("But, a judge's animosity towards counsel may require disqualification. A judge may be disqualified due to prejudice towards an attorney … of such degree that it adversely affects the client.") (cleaned up; quotations and citation omitted).

That concern carries particular significance where the asserted adversarial relationship has previously resulted in the judge's disqualification in another proceeding involving the same counsel. For instance, in Walls v. State, 910 So. 2d 432 (Fla. 4th DCA 2005), a trial judge granted a motion for disqualification and recused herself "because of allegations of animosity towards the attorney." Id. at 433. However, in a subsequent case involving the same counsel, the trial judge denied the motion for disqualification as being legally insufficient. Id. at 432–33. Thereafter, the Fourth District granted prohibition relief, explaining that "[h]aving granted the first motion, indicating that it was legally sufficient to show bias, it must surely show bias days later when the attorney files the motion indicating that the judge had just disqualified herself in the prior case." Id. at 433.

The circumstances here present the same concern, and in an especially significant posture because the prior disqualification resulted from this Court's own review. In Halsall, the verified motion alleged that Judge Thomas displayed a combative and hostile manner toward Petitioners' counsel, engaged in belittling and condescending dialogue and

tone, and imposed burdens upon the defense without an opportunity to be heard. A.10. Among other things, the motion alleged that, during a calendar call and without a pending discovery motion, Judge Thomas required the defense to produce an active clinical neurosurgeon for deposition within six business days or risk having the expert stricken, notwithstanding the provisions of the court's own trial order. A.10–11.

The motion further alleged that Judge Thomas had argued with counsel concerning legal issues not raised by the plaintiff, thereby assuming what the defense perceived as an adversarial role. A.11. Although Judge Thomas denied that motion as legally insufficient, this Court concluded that disqualification was warranted based on the allegations raised and directed reassignment to a successor judge. Halsall, 352 So. 3d at 1287.

Petitioners recognize that a prior disqualification involving counsel does not require the judge's disqualification from every future case involving that attorney. In Jarp v. Jarp, 919 So. 2d 614 (Fla. 3d DCA 2006), this Court rejected the notion of perpetual disqualification based on a dispute that had occurred twenty years earlier, emphasizing that "[w]hether disqualification is required depends on the nature of the dispute and the length of time which has transpired since the dispute." Id. at 615–16. The Court cautioned that "[p]rior recusals, without more, do not objectively demonstrate an appearance of partiality" because "[t]empers do cool, and anger does dissipate." Id. at 616 (quoting Milmir Constr. v. Jones, 626 So. 2d 985, 987 (Fla. 1st DCA 1993)).

Notwithstanding, Jarp itself acknowledges the passage of time and the subsequent course of the relationship remain relevant to whether the

concern underlying an earlier disqualification has dissipated. Thus, where later interactions indicate that the alleged adversarial relationship has continued rather than dissipated, Florida courts have considered those subsequent events together with the earlier history in determining whether disqualification is required.

For instance, in Pinnacle Insurance Co. v. Freeman, 687 So. 2d 989 (Fla. 5th DCA 1997), the Fifth District held that an earlier acrimonious confrontation between the trial judge and counsel, considered together with a later incident between the same judge and counsel in a separate, unrelated case, was sufficient to require disqualification as it demonstrated a genuine "fear of continuing animosity allegedly held by the judge as evidenced at a more recent, unrelated hearing." Id. at 990.

Here, Petitioners alleged precisely the "more" that was absent in Jarp. The Verified Motion did not rely solely on this Court's prior disqualification of Judge Thomas in the Halsall matter. It further alleged that the same adversarial concerns resurfaced in the later Beqiri proceeding involving the same counsel. The disqualification motion from that case alleged that, before any evidence had been presented, Judge Thomas requested an overview of the case and then argued with and cross-examined defense counsel from the bench, challenged the defense's liability and comparative fault theories, expressed disagreement with counsel's position, and addressed counsel in an increasingly aggressive and agitated manner that defense counsel described as erratically unfair, partial, intensely condescending, and combative. A.29–30. The motion further alleged that, during defense counsel's opening statement and without an objection from

the plaintiff, Judge Thomas interrupted and argued with counsel before the jury and instructed counsel to "stick to the facts," after which the jury was removed and the court scolded counsel concerning the opening statement, conduct the defense characterized as condescending toward counsel in the jury's presence. A.31, A.58.

The motion additionally alleged materially different treatment of defense counsel during voir dire and opening statements, including that Judge Thomas avoided eye contact with defense counsel while not displaying the same allegedly hostile or evasive demeanor toward plaintiff's counsel. A.32. And only months later, in Smith, the same counsel again sought Judge Thomas's disqualification based upon their prior history; that proceeding ultimately resulted in Judge Thomas's disqualification when the motion was not ruled upon within the time prescribed by rule. A.72. Thus, unlike the decades-old dispute in Jarp, the allegations here describe a recent and recurring adversarial relationship between the same judge and the same counsel following this Court's decision in Halsall.

When viewed collectively and from Petitioners' perspective, the alleged circumstances would cause a reasonably prudent litigant to fear that the adversarial relationship—previously recognized by this Court in Halsall—has persisted. Florida courts accordingly consider the cumulative effect of the circumstances bearing upon a litigant's fear of partiality. See Dura-Stress, Inc. v. Law, 634 So. 2d 769, 769–70 (Fla. 5th DCA 1994) (holding that although each alleged circumstance, "standing alone, [was] a weak basis for recusal," "the cumulative effect of all these circumstances … adequately established a reasonable basis to fear it would not receive a fair trial").

Even individually, the verified allegations of the underlying motion warrant disqualification. But viewed collectively and accepted as true, the allegations are more than sufficient to demonstrate that a reasonably prudent litigant would fear that the adversarial relationship between Judge Thomas and Petitioners' counsel, that warranted prior disqualification, had not dissipated and that Petitioners will not receive fair and impartial treatment.

CONCLUSION

For the foregoing reasons, Petitioners respectfully request that this Court quash the trial court's September 9, 2026 order denying disqualification, issue a writ of prohibition preventing Judge Thomas from taking further discretionary action in the proceedings below, and direct that the case be reassigned to a different circuit judge.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I certify that this petition complies with the font and word count requirements of Florida Rules of Appellate Procedure 9.045 and 9.100(g). This petition is computer-generated, is set in Arial 14-point font, and contains 2881 words, excluding the parts of the document exempted by Rule 9.045(e).

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished by electronic service through the Florida Courts E-Filing Portal this 9th day of October, 2026, which will provide service on all counsel of record, including Respondents' counsel and via U.S.

Mail to the trial judge who issued the order on review: Nicholas Borrego, Esq., Morgan & Morgan, P.A., 703 Waterford Way, Suite 1050, Miami, FL 33126, nborrego@forthepeople.com, janelnavarro@forthepeople.com, Trial Counsel for Petitioners; Wayne T. Hrivnak, Esq., Wayne T. Hrivnak & Associates, P.A., 2161 Palm Beach Lakes Boulevard, Suite 317, West Palm Beach, FL 33409, wayne@WTHAA.com, dmclaughlin@WTHAA.com, heather@WTHAA.com, eService@WTHAA.com; and The Honorable William Thomas, Circuit Judge, Osvaldo N. Soto Miami-Dade Justice Center, 20 N.W. 1st Ave., Miami, FL 33128.

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